

Bohman and Rehg 1997 Claude Guide

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1 Central Claims

- The volume collects the foundational statements of the **deliberative democracy** paradigm: the claim that the legitimacy of collective decisions derives from the process of public reasoning and mutual justification among free and equal citizens, not merely from the aggregation of pre-existing, exogenously fixed preferences (as in classical pluralist or social-choice models of democracy).
- Deliberation is not simply talk before a vote; it is a distinctive mode of political interaction in which participants offer and respond to reasons, remain open to having their preferences and judgments transformed by argument, and orient themselves toward a justification that others could, in principle, accept. This transformative and other-regarding character is what separates deliberation from bargaining, mere preference aggregation, or strategic persuasion.
- Legitimacy on this view is fundamentally **procedural but not merely procedural**: what makes an outcome binding is not simply that a fair vote-counting rule was followed, but that the outcome could be (or was) generated through a process of public justification that treats all affected parties as sources of legitimate reasons. This positions deliberative democracy as an alternative to two poles: (1) thin, aggregative proceduralism (raw majority rule/social choice, indifferent to the quality of reasoning behind preferences), and (2) purely substantive/outcome-based theories of legitimacy (in which correctness of outcome, independent of process, is what matters).
- The volume is explicitly framed as a response to the **aggregative paradigm**'s theoretical crisis—most sharply expressed by Arrow's impossibility theorem and the broader social choice literature on cycling, manipulability, and the absence of a theoretically coherent "general will" from the aggregation of fixed individual preferences. If preferences cannot be non-arbitrarily aggregated, then democratic legitimacy must derive from something other than aggregation itself: the editors and contributors locate that "something else" in the deliberative process by which preferences are formed, informed, and revised.
- A recurring meta-claim across the essays is that deliberative democracy is best understood as a **family of related positions** rather than a single theory: Habermasian discourse ethics, Rawlsian public reason, and Cohen's proceduralism disagree about the ultimate grounding of legitimacy (communicative rationality vs. an overlapping consensus of comprehensive doctrines vs. an ideal procedure) even as they converge on rejecting pure aggregation and pure technocratic/expert rule.
- The volume repeatedly stresses that deliberation is compatible with, and indeed requires, eventual **decision procedures** (voting, majority rule) once reasonable disagreement persists; deliberative democracy is a theory of how preferences and reasons should be formed and exchanged prior to and around decision rules, not a claim that argument alone can dissolve all disagreement or substitute for a decision rule.

2 Core Theoretical Contributions

- **Habermas and discourse theory (the volume’s central touchstone)**: Jürgen Habermas’s discourse theory of law and democracy, distilled from *Between Facts and Norms*, supplies the volume’s animating theoretical core. Habermas’s **discourse principle** (D) holds that only those norms are valid to which all possibly affected persons could agree as participants in rational discourse; the **principle of democracy** translates this into the claim that only those statutes may claim legitimacy that can meet with the assent of all citizens in a discursive process of legislation. **Communicative rationality**—action oriented toward mutual understanding rather than strategic success—is the substrate on which deliberation depends: participants raise and redeem validity claims (truth, normative rightness, sincerity) that in principle anyone can challenge, and it is this reciprocal accountability to reasons that confers legitimacy on outcomes. Habermas’s “two-track” model of deliberative politics links informal opinion-formation in the public sphere (civil society, media, associations) to formal decision-making in parliamentary/legal institutions, so that deliberation is distributed across society rather than confined to a single decision-making body.
- **Joshua Cohen’s proceduralism and the “ideal deliberative procedure”**: Cohen’s contribution (drawing on his widely reprinted essay “Deliberation and Democratic Legitimacy”) defines an **ideal deliberative procedure** with conditions including: (1) free deliberation, in which participants regard themselves as bound only by the results and preconditions of deliberation itself; (2) reasoned argument, in which participants must give reasons for proposals and are required to persuade rather than coerce; (3) formal and substantive equality among participants; and (4) deliberation aimed at rationally motivated consensus, with voting under fair conditions as a fallback when consensus is unavailable. Cohen’s account is explicitly **proceduralist**: what makes outcomes legitimate is that they could have emerged from this ideal procedure, not that they match some independently specified correct outcome. This is the volume’s clearest programmatic statement of deliberative democracy as an ideal-typical decision procedure distinct from both raw voting and outcome-based (substantive) legitimacy.
- **Rawls and public reason (a related but distinct strand)**: Rawls’s idea of **public reason**, from *Political Liberalism*, requires that citizens (especially officials and judges, and citizens when debating constitutional essentials and matters of basic justice) justify their political positions using reasons that other reasonable citizens, despite holding different comprehensive doctrines, could accept—an **overlapping consensus**. Rawls’s public reason is deliberative in spirit (it demands mutual justification rather than the imposition of comprehensive doctrines) but differs from Habermas/Cohen in scope and grounding: it is narrower (applies most stringently to constitutional essentials), more concerned with the stability of a liberal order given reasonable pluralism than with a general theory of communicative action, and grounds legitimacy in what citizens *could* reasonably accept given their considered, freestanding political conception rather than in an actual discourse-theoretic procedure. The volume situates Rawlsian public reason as a fellow traveler that deliberative democrats draw on and also push beyond (public reason is largely about con-

straining the kinds of reasons offered; deliberative democracy proper is more concerned with the dynamic, transformative process of exchange).

- **Jon Elster: arguing versus bargaining:** Elster's contribution (anticipating and drawing on his edited volume *Deliberative Democracy*, 1998) draws a sharp analytical distinction between **arguing** (offering impartial, generalizable reasons oriented toward the common good, subject to a "civilizing force of hypocrisy" in which even self-interested actors must dress up claims in impartial language) and **bargaining** (openly strategic exchange of threats and offers based on relative power). Deliberative institutions are valuable partly because the norm of publicity forces participants who might otherwise bargain to instead argue, at least rhetorically—even insincere appeals to the common good can have a disciplining effect on what proposals are put forward. Elster is more skeptical than Habermas or Cohen about how much real politics approximates pure arguing, and his essay supplies the volume's most institutionally grounded (constitutional-convention-style) empirical touchstones for when deliberation does and does not displace bargaining.
- **Critiques of aggregative/preference-based democratic theory:** Several contributions motivate the deliberative turn by rehearsing the well-known pathologies of the aggregative paradigm: **Arrow's impossibility theorem** shows that no aggregation rule can simultaneously satisfy a small set of minimally reasonable conditions (unrestricted domain, Pareto efficiency, independence of irrelevant alternatives, non-dictatorship) while guaranteeing a consistent, transitive social ordering from individual preference orderings; **cycling** (Condorcet-style majority cycles) shows that majority rule outcomes can be manipulated by agenda-setters and lack a determinate "will of the people"; and more broadly, social choice theory reveals that treating preferences as fixed, exogenous inputs to be mechanically aggregated cannot by itself ground a coherent or non-arbitrary account of collective rationality or legitimacy. The deliberative response is not to solve social choice's technical problems but to reject the premise that preferences are fixed and exogenous: deliberation is supposed to transform preferences (toward more informed, other-regarding, and reason-responsive positions) prior to and around whatever aggregation rule is finally used, which does not eliminate cycling risk in principle but changes what is being aggregated and why the resulting process can still claim legitimacy.
- **Deliberative democracy versus pure proceduralism and pure substantivism:** A theme structuring the whole volume is the effort to stake out a middle position. Pure **proceduralism** (e.g., simple majority rule with no constraint on the content or quality of reasons) is rejected because it can legitimate outcomes reached through manipulation, ignorance, or the mere aggregation of unreflective preferences. Pure **substantive/outcome-based** theories (legitimacy is a function of whether the outcome is independently "correct," e.g., utilitarian or Rawlsian-difference-principle-optimal, regardless of process) are rejected because they license technocratic or paternalistic bypassing of citizens' own reasoning and fail to respect citizens as self-governing authors of the laws that bind them. Deliberative democracy's proposed synthesis: legitimacy tracks a *process* (public giving and taking of reasons under conditions of freedom and equality) that is itself normatively demanding enough to filter out arbitrary or unreasoned outcomes without requiring agreement on a

substantive conception of the good or the correct outcome in advance.

3 Core Works Cited

- **Jürgen Habermas**, *Between Facts and Norms: Contributions to a Discourse Theory of Law and Democracy* (1992; English trans. 1996)—the single most important background text for the volume; supplies the discourse principle, the principle of democracy, the two-track model of deliberative politics, and the account of communicative vs. strategic action that underwrites the whole deliberative paradigm.
- **John Rawls**, *Political Liberalism* (1993)—the source of public reason and the idea of an overlapping consensus among reasonable comprehensive doctrines; the volume treats Rawls as a crucial but partially distinct interlocutor relative to the Habermasian core.
- **Joshua Cohen**, “Deliberation and Democratic Legitimacy” (1989, reprinted in numerous anthologies including this one)—the classic short statement of the ideal deliberative procedure and proceduralist deliberative legitimacy; arguably the volume’s most-cited single essay.
- **Jon Elster** (ed.), *Deliberative Democracy* (Cambridge University Press, 1998)—companion/successor volume developing the arguing-versus-bargaining distinction and empirical/institutional case material (constitutional conventions, etc.) at greater length than possible in Bohman and Rehg’s collection.
- **Kenneth Arrow**, *Social Choice and Individual Values* (1951; 2nd ed. 1963)—the foundational social choice text whose impossibility theorem motivates the volume’s critique of aggregative democratic theory and frames what deliberation is meant to supplement or supersede.
- **Bernard Manin**, “On Legitimacy and Political Deliberation” (*Political Theory*, 1987)—an early and influential statement that the source of legitimacy in modern democracies is not a prior general will but the process of deliberation itself; anticipates and directly informs the volume’s central procedural-legitimacy claim.

4 Key Debates and Critiques within the Volume

- **Feasibility and idealization critiques:** A running concern across contributions is whether real political deliberation—conducted by unequal, self-interested, time-constrained, imperfectly informed citizens embedded in unequal social structures—can approximate the ideal speech situation or ideal deliberative procedure closely enough for the theory’s legitimacy claims to bear normative weight. If actual deliberation routinely falls short (dominated by the articulate, the well-resourced, or strategic actors skilled at framing self-interest as principle), then either the ideal must be treated as a regulative standard rather than a description, or deliberative theory risks legitimating outcomes that are not

really the product of anything like free and equal reasoning. The volume’s contributors differ on how much idealization is tolerable and on what institutional supplements (education, resource equality, procedural safeguards) are needed to close the gap between ideal and actual.

- **The “difference democrats” critique (Iris Marion Young and allied voices):** A major internal critique, associated with Iris Marion Young’s work (referenced and engaged within the volume’s broader debates), holds that deliberative norms privileging calm, dispassionate, generalizable, rule-governed argument encode culturally specific—often white, male, highly educated—styles of speech, and thereby systematically disadvantage or exclude marginalized groups whose political expression may take the form of storytelling, rhetoric, greeting, or emotionally charged testimony. On this view, insisting that legitimate political claims be couched in the idiom of impartial reason is not neutral but can itself be a mechanism of exclusion, reproducing rather than correcting political inequality. Contributors sympathetic to deliberative democracy respond variously: by broadening what counts as a legitimate deliberative contribution (including narrative and rhetoric) or by insisting that the core requirement is reciprocity and mutual justification, not any particular stylistic register.
- **Deliberation and aggregation/voting:** The volume repeatedly stresses that deliberation does not eliminate the need for an eventual decision rule. Reasonable disagreement about values and interests is not expected to dissolve through discussion alone; even Cohen’s ideal procedure specifies fair voting as the fallback once deliberation fails to produce consensus. This raises a persistent tension: if deliberation is often followed by ordinary vote-counting, the social-choice-theoretic problems (cycling, agenda manipulation, Arrowian impossibility) that motivated the deliberative turn do not disappear—they are merely relocated to the point after deliberation. Defenders argue that deliberation still improves legitimacy by narrowing the range of live options, informing preferences, and producing outcomes citizens can recognize as reasoned even when they are also cast as votes.
- **Discourse ethics versus political liberalism:** An internal debate concerns whether Habermasian discourse theory and Rawlsian public reason are ultimately compatible or rival grounds for deliberative democracy. Habermas himself criticized Rawls’s political liberalism (in their published exchange, referenced within this literature) for smuggling in a substantive, freestanding conception of justice prior to actual public deliberation, while Rawlsians worried that discourse ethics demands an unrealistically strong, quasi-transcendental communicative rationality. The volume registers this as an open foundational disagreement within the broader deliberative family rather than resolving it.

5 Methodological Contributions and Limitations

- **Primarily normative/political-theory project:** The essays in this volume are overwhelmingly works of normative political theory and philosophy—concerned with what legitimacy requires and how deliberation ought to be structured—rather than empirical political science. Claims about the transformative power of deliberation, the disciplining

effect of publicity, or the conditions of the ideal deliberative procedure are largely developed through conceptual argument, textual engagement with Habermas/Rawls/Arrow, and stylized or historical illustration rather than systematic empirical testing.

- **Limited engagement with institutional design and measurement:** Relative to later work, the volume offers comparatively little guidance on how to operationalize “genuine” deliberation empirically (e.g., what a survey instrument or observational coding scheme for deliberative quality would look like), or on which real-world institutions (juries, town meetings, parliamentary committees, citizen assemblies) most closely instantiate the ideal procedure and why.
- **The empirical turn beyond this volume:** The normative program laid out here directly inspired a subsequent, largely separate empirical and experimental literature that lies outside this volume’s scope but is worth flagging for comps purposes: most prominently **James Fishkin’s deliberative polling**, which attempts to operationalize and measure opinion change under controlled deliberative conditions, alongside broader experimental and survey-based work on deliberative quality, group polarization in deliberation, and the design of mini-publics and citizen assemblies. This later empirical literature takes the volume’s normative ideal as its explanandum/target and asks whether, and under what institutional conditions, it can be approximated and detected in practice—a question this 1997 volume raises philosophically but does not itself test.
- **Strength as synthesis rather than original empirical contribution:** The volume’s methodological value for a comps reading is less about original empirical method and more about serving as an anthology/synthesis text: it collects, juxtaposes, and puts in dialogue several independently developed theoretical programs (Habermas, Rawls, Cohen, Elster, social choice critics) that a student might otherwise have to track down as freestanding books, making it efficient for mapping the intellectual terrain of the deliberative turn.

6 Connections to the Broader Literature

- **Dahl 1972 (*Polyarchy*):** Dahl’s procedural conditions for polyarchy (freedom to form and join organizations, free expression, eligibility for public office, alternative sources of information, free and fair elections, institutions for making government policies depend on votes and other expressions of preference) are a direct predecessor to deliberative democracy in insisting that legitimate democracy requires more than bare majority rule. But Dahl’s framework remains fundamentally **aggregative**: it specifies the fair conditions under which pre-existing preferences and interests are expressed and counted, without theorizing the transformation of preferences through reasoned exchange that is the deliberative turn’s distinctive contribution. Deliberative democrats build on Dahl’s procedural minimum while criticizing polyarchy for treating interest articulation and aggregation, rather than public justification, as the core democratic activity.
- **Lijphart 1999 (consensus versus majoritarian democracy):** Lijphart’s **consensus democracy** model—with its emphasis on power-sharing, broad coalitions, and negotiation

among elites across cleavages—bears a family resemblance to deliberative ideals insofar as both value inclusive, negotiated decision-making over winner-take-all majoritarianism. But the resemblance is institutional rather than theoretical: Lijphart’s consensus model is compatible with elite **bargaining** in Elster’s sense (strategic accommodation among segmented pillars/parties) rather than Habermasian **arguing** oriented toward generalizable reasons, and Lijphart’s typology is explicitly comparative-institutional rather than normative-legitimacy-theoretic. Still, the two literatures usefully illuminate each other: consensus democracies may provide more hospitable institutional terrain for deliberative norms to take root (lower stakes to compromise, more venues for cross-cutting negotiation) than majoritarian systems.

- **Putnam 1993 (civic community and associational life):** Putnam’s account of social capital, horizontal associational networks, and generalized trust plausibly supplies a **social precondition** for genuine deliberative capacity: Habermas’s two-track model explicitly depends on a vibrant informal public sphere of civil-society associations to generate and filter the opinions that feed into formal deliberative institutions, and it is hard to see how citizens could engage in the free, equal, other-regarding exchange of reasons that deliberative theory demands absent the kind of horizontal trust and civic engagement Putnam documents. Conversely, Putnam’s finding that associational density and trust vary enormously and are path-dependent on centuries of history is sobering for deliberative theory’s feasibility, reinforcing the volume’s internal idealization critique.
- **Huntington 1968 and Moore 1966:** Both works are concerned with the structural and developmental preconditions for stable political order and mass participation, and both are broadly skeptical that reasoned public discourse alone (absent institutionalization, in Huntington’s case, or a particular class coalition and commercialization of agriculture, in Moore’s case) can explain regime trajectories. Deliberative democracy’s assumption of citizens already possessing the capacity, security, and institutional standing to engage in reasoned exchange presupposes precisely the kind of stable, institutionalized political order (Huntington) or successfully completed structural transformation (Moore) that those works treat as historically contingent and hard-won, not given.
- **Cox 1997 and Muller and Strom 1999:** Party-systems and coalition-bargaining literatures (Cox on electoral-system-driven strategic coordination; Muller and Strom on the policy/office/votes trade-offs that structure real party behavior) depict party competition and government formation as thoroughly **strategic**—parties bargain over office and policy based on electoral incentives and organizational goals, closely tracking Elster’s category of bargaining rather than arguing. This is a useful empirical counterpoint to deliberative democracy’s more idealized picture of reasoned public discourse: real party politics, as Muller and Strom model it, looks much more like strategic goal-conflict management than a Habermasian search for generalizable reasons, which raises the feasibility question (see above) in sharply institutional terms—how much room, if any, does party competition as actually practiced leave for genuine deliberation among elites or between elites and citizens?

- **Powell 2000 and Svolik 2012:** Powell’s comparative work on democratic institutions and the “chain of responsiveness/accountability” and Svolik’s work on authoritarian politics and the credible commitment problems facing power-sharing elites both operate within essentially strategic, institutionalist frameworks (electoral incentives, commitment and enforcement problems) rather than deliberative-normative ones. They serve as a reminder that most positive political science treats political actors as strategic optimizers subject to institutional constraints; deliberative democracy is best read as a normative corrective/supplement to, not a replacement for, this strategic-institutionalist mainstream, and comps answers should be able to say clearly where a deliberative frame adds explanatory or evaluative leverage that a purely strategic account lacks (and where it does not).
- **Ostrom 1990 (commons governance and design principles):** Ostrom’s design principles for enduring common-pool resource institutions include **collective-choice arrangements**—provisions that most individuals affected by operational rules can participate in modifying those rules. This is a proceduralist, participatory echo of deliberative themes, but pitched at the level of small-scale, face-to-face commons governance rather than the modern territorial state that Habermas, Rawls, and Cohen theorize. The comparison is illuminating precisely because of the scale difference: Ostrom’s empirically documented, successful participatory rule-modification in commons settings offers a modest existence proof that inclusive, reason-giving collective-choice processes can work, while also raising the question (left open by this volume) of whether such processes scale to mass democratic politics or depend on the small-group, repeated-interaction conditions Ostrom studies.